



WSP – e2m

MN-35038

Phase 1 Determination

Acquisition may be put into effect

16 September 2026

1. Determination and statement of reasons

Notified acquisition	WSP Australia Pty Limited (WSP) is proposing to acquire 100% of the issued share capital of E2M Pty Ltd (e2m) (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer WSP is a subsidiary of WSP Australia Holdings Pty Ltd and ultimately controlled by WSP Global Inc, a corporation listed on the Toronto Stock Exchange. These related companies form the WSP Group. The WSP Group is a global engineering consulting services firm and provides engineering services to customers across various industries. In Australia, WSP provides services related to planning, engineering, quality assurance and implementation of projects in the construction, energy, transport, infrastructure, building, and natural resource sectors. WSP's services include ecology services such as habitat and species assessment, environmental impact assessment, ecological monitoring, as well as permits/approvals and regulatory support. The target, e2m is an Australian environmental consulting firm that specialises in ecology, biodiversity, environmental approvals, environmental analytics, and spatial information services.
Overlap between the Parties	WSP and e2m overlap in Australia in the supply of environmental consulting services.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form and information from third parties. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition would be unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings. While both the merger parties supply environmental consulting services, they have differentiated points of focus. In particular, e2m specialises in ecology services, whereas WSP offers some of these services as part of its broader engineering and consultancy services.

	▪ WSP would likely continue to face competition from several alternative suppliers of environmental consulting services, including ecology services in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act